

2. **Trust chattels subject to forfeiture, &c.** — So chattels real and personal held upon trust were forfeitable until the late Act (which extends to personal as well as real estate),

* for the offence of the trustee (*a*); but in the case [*223] of two joint trustees, a moiety only was forfeited, and the King and the other trustee were tenants in common (*b*).

Devolve on executor. — On the decease of the trustee the chattel, as part of his personal estate at law, devolves on his executor or administrator. And if the executor die after probate, having appointed an executor, the chattel becomes vested in that executor.

3. **Renunciation by one executor.** — Until a late Act, if an executor had renounced probate, the renunciation, though *prima facie* absolute (*c*), might have been retracted at any time before a new administration was granted. Hence where two executors were named and one renounced, and the acting executor died having appointed executors, but pre-deceased his co-executor, it was necessary to take out letters of administration to the original testator, for the acting executor not being the survivor did not transmit the interest, and the renouncing executor declined to act (*d*). But now by 20 & 21 Vict. c. 77, s. 79, where an executor *renounces probate*, the rights of such executor are made to cease; and the representation to the testator and the administration of his effects, without further renunciation, go, devolve and are committed as if such person had not been appointed executor (*e*). But the Act does not apply to the case of a person who renounced before the Act came into operation, and if he renounced before the Act, any second renunciation after the Act for the purpose of bringing himself

the question arose whether the vesting order had any effect, having regard to the 30th sect. of the late act, and the Court, upon motion, directed that "notwithstanding the previous order, the land should vest in the new trustees for all the estate therein then vested in the legal personal representative," *Re Pilling's Trusts*, 26 Ch. D. 432.]

(a) *Pawlett v. Attorney-General*,

Hard. 466, *per* Lord Hale; *Wike's case*, Lane, 54; *Scounden v. Hawley*, Comb. 172, *per* Dolben, J.; *Jenk.* 219, c. 66; *ib.* 245, c. 30.

(b) *Wike's case*, Lane, 54.

(c) *Venables v. East India Company*, 2 Exch. 633.

(d) *Arnold v. Blencowe*, 1 Cox, 426.

(e) *In re Goods of C. Lorimer*, 10 W. R. 809, & 2 S. & T. 471.